

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



Honorable David Moranda
Judge of the Superior Court
County of Merced
2260 N. Street
Merced, CA 95340

Re: Thomas Jr., Demetrius Ray
CDC No.: AY7203
Case No.: CRM016537
Date of Sentence: December 16, 2015

Dear Honorable David Moranda:

The purpose of this letter is to provide the court with authority to resentence Demetrius Ray Thomas Jr. pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Thomas Jr. was sentenced in 2015, and was convicted of section 245, subdivision (a)(2), Assault with Firearm on person. The trial court sentenced inmate Thomas Jr. on December 16, 2015. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Thomas Jr.'s section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Thomas Jr.'s sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Donald J. Proietti, Merced County Presiding Judge
Merced District Attorney
Public Defender

AY 7203

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Merced		AY 7203		FILED 12-16-15 MERCED SUPERIOR COURT By Krista Gietler	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Demetrius Ray Thomas Jr.		DOB: 04/27/92			
AKA:		CASE NUMBER CRM016537			
CII NO.:		BOOKING NO.: 2013-00010509 ☐ NOT PRESENT			
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT					
DATE OF HEARING 12/16/15		DEPT. NO. 3		JUDGE David Moranda	
CLERK Danielle Santos		REPORTER Renee Terry		PROBATION NO. OR PROBATION OFFICER none ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE Misty Compton, DDA		COUNSEL FOR DEFENDANT William Davis, CPD ☒ APPOINTED			

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	JURY	COURT	PLEA	TERM (L, M, U)	TIME IMPOSED YRS.	MOS.
2	PC	245(a)(2)	Assault with firearm on person	2010	10/05/15			X	U	04	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL YRS.	MOS.
2	PC12022.7(a)	Y03	PC186.22(b)(1)(B)	Y05			08	00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL YRS.	MOS.

4. Defendant sentenced ☒ to prison per PC 1170(a) or (h)(3) ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant was ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$3600 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$3600 per PC 1202.45 suspended unless parole is revoked. \$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☐ \$ ☐ Amount to be determined to ☐ * victim(s) ☐ Restitution Fund

* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$ 40.00 per PC 1465.8. ☒ Criminal Conviction Assessment of \$30.00 per GC 70373.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't's Race / National Origin B

8. Other orders (specify): The Court reserves jurisdiction as to restitution. Credits: Actual-1742; Conduct-261; Hospital-181 TOTAL:2184 days

9. TOTAL TIME IMPOSED: 12 00

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

11. ☐ This sentence is to run concurrent with (specify):

12. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
12/16/15	2184	1742	261 ☐ 2933 ☐ 2933.1 ☐ 4019	DMH ☐ CDCR ☐ CRC ☐

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation. ☐ county jail ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE <u>Krista Gietler</u>	DATE 12/16/15
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1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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Penal Code,
§§1170, 1213, 1213.5